

# STATE OF NEW YORK

4641--A

2025-2026 Regular Sessions

## IN ASSEMBLY

February 4, 2025

Introduced by M. of A. GLICK, COLTON, OTIS, SIMONE, ROSENTHAL, DE LOS SANTOS, REYES, DINOWITZ, SIMON, STERN, JACOBSON, BORES, ROZIC, RAJKUMAR, STECK, McMAHON, ANDERSON, KIM, SHIMSKY, LUNSFORD, SANTABARBARA, EPSTEIN, BARRETT, FORREST, TAYLOR, CLARK, BICHOTTE HERMELYN, R. CARROLL, PAULIN, SEAWRIGHT, SHRESTHA, SLATER, CUNNINGHAM, SAYEGH, MAGNARELLI, LEVENBERG, K. BROWN, WOERNER, RAGA, VANEL, GONZALEZ-ROJAS, BENEDETTO, JACKSON, RIVERA, TAPIA, JONES, STIRPE, LUPARDO, MEEKS, CONRAD, LEE, BRONSON, BUTTENSCHON, PHEFFER AMATO, DAVILA, BURKE, FALL, HUNTER, WILLIAMS, EACHUS, RAMOS, BENDETT, BURDICK, MAMDANI, ALVAREZ, KELLES, DeSTEFANO, RA, GIBBS, BLUMENCRANZ, McDONOUGH, WALSH, SIMPSON, SMITH, DURSO, GANDOLFO, DILAN, McDONALD, SCHIAVONI, KASSAY, HEVESI -- read once and referred to the Committee on Environmental Conservation -- reported and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to rechargeable battery recycling

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The article heading of article 27 of the environmental  
2 conservation law is amended to read as follows:

3 REDUCTION, COLLECTION, REUSE, RECYCLING,  
4 TREATMENT AND DISPOSAL OF [~~REFUSE-AND-OTHER~~] SOLID WASTE

5 § 2. The title heading of title 18 of article 27 of the environmental  
6 conservation law, as added by chapter 562 of the laws of 2010, is  
7 amended to read as follows:

8 EXTENDED PRODUCER RESPONSIBILITY FOR  
9 RECHARGEABLE [~~BATTERY-RECYCLING~~] BATTERIES

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[~~-~~] is old law to be omitted.

LBD00126-03-5

§ 3. Section 27-1801 of the environmental conservation law, as added by chapter 562 of the laws of 2010, is amended to read as follows:  
§ 27-1801. Short title.

This title shall be known as and may be cited as the "~~New York State~~ Extended Producer Responsibility Law for Rechargeable Batteries".

§ 4. Subdivision 4 of section 27-1803 of the environmental conservation law, as added by chapter 562 of the laws of 2010, is amended and a new subdivision 7 is added to read as follows:

4. "rechargeable battery" means any rechargeable: (i) nickel-cadmium, sealed lead, lithium ion, nickel metal hydride battery; (ii) battery used as the principal electric power source for an electric scooter or bicycle with electric assist; or (iii) any other such dry cell battery capable of being recharged weighing less than ~~twenty-five~~ fifty pounds, or battery packs containing such batteries; (iv) but shall not include a battery used as the principal electric power source for a vehicle, such as, but not limited to, an automobile, boat, truck, tractor, golf cart or wheelchair; for storage of electricity generated by an alternative power source, such as solar or wind-driven generators; or for memory backup that is an integral component of an electronic device;

7. "sell" or "sale" means any transfer for consideration of title or the right to use, from a manufacturer or retailer to a person, including, but not limited to, transactions conducted through retail sales outlets, catalogs, mail, the telephone, the internet, or any electronic means; "sell" or "sale" shall not include samples, donations, and reuse.

§ 5. Paragraphs a and d of subdivision 1 of section 27-1807 of the environmental conservation law, as added by chapter 562 of the laws of 2010, are amended to read as follows:

a. Retailers having a place of business in the state shall accept from consumers at any time during normal business hours rechargeable batteries of a similar shape, size ~~and shape~~, and function as the retailer offers for sale. Retailers shall take up to ten such batteries per day from any person regardless of whether such person purchases replacement batteries, and retailers shall also accept as many such batteries as a consumer purchases from the retailer. Retailers shall conspicuously post and maintain, at or near the point of entry to the place of business, a legible sign, not less than eight and one-half inches by eleven inches in size, stating that used rechargeable batteries of the size and shape sold or offered for sale by the retailer may not enter the solid waste stream, and that the retail establishment is a collection site for recycling such batteries. Such sign shall state the following in letters at least one inch in height: "It is illegal to dispose of rechargeable batteries in the state of New York as solid waste. We accept used rechargeable batteries for return to the manufacturer."

d. Retailers may not sell or offer for sale to consumers in the state rechargeable batteries unless the battery manufacturer is operating in accordance with a collection, transportation, and recycling plan approved by the commissioner. The commissioner shall maintain on the department's website a list of manufacturers operating in accordance with approved plans, and the brands covered by such manufacturer's plans.

e. Retailers must be in compliance with the provisions of this subdivision no later than one hundred eighty days after the effective date of this title or, with respect to a rechargeable battery defined in paragraph (ii) of subdivision four of section 27-1803 of this title, and

1 with respect to the requirements of paragraph d of this subdivision one  
2 year after the effective date of the chapter of the laws of two thousand  
3 twenty-five which amended this title, or when the commissioner has  
4 approved a new or updated plan in compliance with such chapter, whichever  
5 is later.

6 § 6. Paragraphs a and b of subdivision 2 of section 27-1807 of the  
7 environmental conservation law, as added by chapter 562 of the laws of  
8 2010, are amended to read as follows:

9 a. Within ninety days of the effective date of this title or, with  
10 respect to rechargeable batteries defined in paragraph (ii) of subdivi-  
11 sion four of section 27-1803 of this title, within one hundred eighty  
12 days of the effective date of the chapter of the laws of two thousand  
13 twenty-five that amended such paragraph, submittance to the commissioner  
14 of a new or updated plan that identifies the methods by which battery  
15 manufacturers will safely collect, transport, and recycle rechargeable  
16 batteries collected by retailers at the expense of the battery manufac-  
17 turer and provide retailers with information on the safe handling and  
18 storage of rechargeable batteries.

19 b. Submittance to the department of annual reports, on a form  
20 prescribed by the department, concerning the amount of rechargeable  
21 batteries received within the state and recycled either by number or by  
22 weight, including the weight of rechargeable batteries defined in para-  
23 graph (ii) of subdivision four of section 27-1803 of this title received  
24 within the state as well as within a city with a population of one  
25 million or more; the costs of such efforts; and any other relevant  
26 information as required by the department.

27 § 7. Subdivision 2 of section 27-1807 of the environmental conserva-  
28 tion law is amended by adding a new paragraph d and a new subdivision  
29 2-a is added to read as follows:

30 d. Providing for the safe and prompt collection and disposal of  
31 batteries from electric scooters or bicycles with electric assist  
32 collected by retailers and by government agencies.

33 2-a. A battery manufacturer may not sell, offer for sale, or distrib-  
34 ute rechargeable batteries in the state unless the battery manufacturer  
35 is implementing or participating under an approved plan in accordance  
36 with this section.

37 § 8. Section 27-1807 of the environmental conservation law is amended  
38 by adding a new subdivision 6 to read as follows:

39 6. The department shall, after consultation with the office of fire  
40 prevention and control in the division of homeland security and emergen-  
41 cy services and the fire department of the city of New York, within one  
42 hundred eighty days of the effective date of the chapter of the laws of  
43 two thousand twenty-five that added this subdivision, promulgate rules  
44 and regulations to ensure the safe storage of rechargeable batteries  
45 that minimizes the risk of fires. Such rules and regulations shall also,  
46 at a minimum, require retailers to:

47 a. coordinate with a battery manufacturer, or any combination of  
48 battery manufacturers working together, to regularly remove batteries  
49 from the retail location; and

50 b. inform all employees who handle or have responsibility for managing  
51 batteries about proper handling and emergency procedures, including fire  
52 related hazards, appropriate to the type or types of battery handled by  
53 the retailer.

54 § 9. Section 27-1809 of the environmental conservation law is amended  
55 by adding a new subdivision 5 to read as follows:

1     5. In a city with a population of one million or more, such city  
2 shall, in addition to any authority otherwise conferred in this chapter,  
3 have concurrent authority to enforce, by an agency or agencies  
4 designated for such purpose by the mayor of such city, the provisions of  
5 section 27-1805 and subdivision one of section 27-1807 of this title.  
6 Any notice of violation issued by an agency designated by the mayor of  
7 such city charging a violation of section 27-1805 and subdivision one of  
8 section 27-1807 of this title shall be returnable to the environmental  
9 control board of such city. Such environmental control board shall have  
10 the power to impose the civil penalties set forth in subdivisions one,  
11 two and three of this section. All civil penalties collected for any  
12 violation of this title that have been imposed by the environmental  
13 control board of such city shall be paid into the general fund of such  
14 city.

15     § 10. Section 27-1811 of the environmental conservation law, as added  
16 by chapter 562 of the laws of 2010, is amended to read as follows:

17     § 27-1811. State preemption.

18     Jurisdiction in all matters pertaining to rechargeable battery recycl-  
19 ing is, by this title, vested exclusively in the state. Any provision of  
20 any local law or ordinance, or any rule or regulation promulgated there-  
21 to, governing rechargeable battery recycling shall, upon the effective  
22 date of section 27-1805 of this title, be preempted; provided, however,  
23 that nothing in this section shall preclude a person from coordinating,  
24 for recycling or reuse, the collection of rechargeable batteries and  
25 provided, further, however, that nothing in this section shall preclude  
26 the enforcement of this title pursuant to subdivision five of section  
27 27-1809 of this title.

28     § 11. This act shall take effect immediately.